

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, AUGUST 25, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, August 25, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 24, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0087402 Capital One NA v. London, Juliann

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to set aside dismissal and enter judgment on stipulation pursuant to Code of Civil Procedure section 664.6 in the amount of \$810 in principal damages plus costs of \$603.61 for a total judgment of \$1,413.61. Defendant has not filed any opposition.

This motion was initially scheduled for hearing on July 23, 2026 at 8:30 a.m. in Department 3. However, given changes to the court's calendar, the court rescheduled this matter to be heard on August 4, 2026. There was no evidence in the court's file that defendant was served with notice of continued hearing, so the court previously continued the motion to today and directed plaintiff to serve defendant with a copy of the ruling and to file a proof of service with the court by August 7, 2026. (Civil Law and Motion minutes, Aug. 4, 2026.)

A review of the court's file reveals no evidence plaintiff served notice of continued hearing on defendant as the court had directed. The motion to enforce settlement is therefore denied without prejudice.

2. M-CV-0094263 Citibank NA v. Saed, Marleen

Motion to deem admitted plaintiff's requests for admissions, set one

Plaintiff moves to deem admitted plaintiff's requests for admissions, set one.

Section 2033.280 of the California Code of Civil Procedure states "[i]f a party to whom requests for admission are directed fails to serve a timely response... (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted."

Defendant did not file an opposition.

Plaintiff's unopposed motion to deem admitted plaintiff's requests for admissions, set one, is granted. (Code Civ. Proc., § 2033.280 (b).) Defendant is deemed to have admitted the matters set forth in plaintiff's requests for admissions, set one.

3. S-CV-0047732 Northstar Village Assn. v. CLP Northstar

This tentative ruling is issued by the **Honorable Michael W. Jones**. The case management conference is continued to **September 17, 2026 at 8:30 a.m. in Department 3** by the **Honorable Michael W. Jones**.

4. S-CV-0050523 Patel, Ragini v. Kaur, Manjit

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Sever or Bifurcate

Defendant Tawfiq Morrar moves to bifurcate trial. (Code Civ. Proc., §§ 598, 1048, subd. (b).) Specifically, defendant moves to bifurcate the issue of qualified immunity under Civil Code section 2924(b) from the other issues to be determined at trial. Plaintiff Ragini Patel opposes the motion.

Plaintiff's request for judicial notice is granted as to exhibits A through D to the extent they are filed court records. However, the court does not take judicial notice of the information alleged and declared in exhibits A through C.

As issues of trial management are generally best addressed by the trial judge, the motion to bifurcate is denied without prejudice to being renewed at the time of trial.

5. S-CV-0050702 SVLA LLC v. Mark Tanner Construction

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Jason Wooley dba Lot C Architecture's Motion for Summary Judgment / Adjudication

Rulings on Requests for Judicial Notice and Evidentiary Objections

The parties' requests for judicial notice are granted.

Plaintiff's objections to defendant's Undisputed Material Facts ("UMF") Nos. 2, 3, 6, 8, 9, 10, 11, 12, 13, 16, 17, are overruled.

Ruling on Motion

Defendant requests summary judgment as to the sole cause of action alleged against him for violation of Civil Code section 896.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c(a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c(c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

As a preliminary matter, plaintiff argues defendant is judicially estopped from asserting that plaintiff cannot establish this claim in light of prior arguments made in the context of demurrers to the operative complaints. Judicial estoppel applies where "(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake." (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183.)

In this case, defendant previously argued that based on the allegations, any negligence claim was necessarily supplanted by the Right to Repair Act. The court accepted this argument and ultimately sustained the demurrer to the negligence claim alleged in plaintiff's third amended complaint without leave to amend. In the current motion, defendant argues that plaintiff cannot demonstrate by admissible evidence that the Right to Repair Act applies. These two positions are not totally inconsistent as the demurrer addressed the facts as alleged in the pleading, as opposed to whether plaintiff possesses evidence establishing a triable issue of fact regarding applicability of the Right to Repair Act. The court concludes defendant is not judicially estopped from arguing that the claim fails in the context of this summary judgment motion.

Turning to defendant's substantive arguments, defendant asserts the Right to Repair Act cannot apply to his work as an architect or design professional because the Right to Repair Act applies only to "original construction intended to be sold as an individual dwelling unit." (Civ. Code § 896.) Defendant submits evidence that in or about 2009, he was retained by Lawrence J. Welk III and Tracey M. Welk, to design a custom home to be built on a vacant lot they owned. (Deft. SSUMF 1, 2, 4.) Defendant understood the Welks wished to develop a vacation home for their personal use. (Deft. SSUMF 2.) After construction of the home was completed, defendant visited the home to consult with the Welks regarding potential changes to their garage and observed them occupying the property. (Deft. SSUMF 6.) Defendant was never advised that the Welks intended to design and build the home so they could sell it. (Deft. SSUMF 3.) Based on this evidence, defendant meets his initial burden to demonstrate there are no triable issues of fact, shifting the burden to plaintiff to establish a triable issue.

Plaintiff cites to *Beacon Residential Community Association v. Skidmore, Owings, & Merrill LLP* (2014) 59 Cal.4th 568, where the California Supreme Court held that architects owed a duty of care to future homeowners despite the lack of contractual privity. The Court's decision in that case noted "defendants provided their services knowing the finished construction would be sold as condominiums." (*Id.* at 571.) Here, plaintiff presents no evidence to raise a triable issue of fact that the home was designed and constructed with the intent that it be sold, nor does plaintiff identify caselaw which would support the contention that the Right to Repair Act applies in the absence of such evidence.

As plaintiff fails to meet its burden to demonstrate a triable issue of fact, the motion for summary judgment is granted.

Defendant Mark Tanner Construction, Inc.'s Motion for Summary Adjudication

Rulings on Requests for Judicial Notice and Evidentiary Objections

The parties' requests for judicial notice are granted.

Plaintiff's objections to defendant's Undisputed Material Facts ("UMF") Nos. 4, 6, 7, 8, 9, are overruled.

Ruling on Motion

Defendant Mark Tanner Construction, Inc. moves for summary adjudication as to plaintiff's third cause of action for violation of Civil Code section 896 and fifth cause of action for strict liability.

A party may move for summary adjudication as to one or more causes of action. (Code Civ. Proc. § 437c (f)(1).) The moving party bears the initial burden of establishing each element of the cause of action entitling them to judgment as a matter of law. (*Id.* at (f)(1),

(p)(1).) Only if this initial burden is met will the burden shift to the opposing party to establish a triable issue of material fact. (*Id.* at (p)(1).) In reviewing a motion for summary adjudication, the court must view the supporting evidence and all reasonable inferences drawn from the evidence in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.)

As a preliminary matter, plaintiff argues that the court has already determined it may proceed under the Right to Repair Act in light of its ruling on prior demurrers. However, the court's ruling on prior demurrers addressed the facts as alleged in the operative pleading, as opposed to the issue of whether plaintiff possesses evidence establishing a triable issue of fact regarding applicability of the Right to Repair Act.

Defendant asserts the plaintiff's claims under the Right to Repair Act cannot apply because it applies only to "original construction intended to be sold as an individual dwelling unit." (Civ. Code § 896.) Defendant submits evidence that he was retained to construct a custom home for property owners the Welks and did not perform contractor services for original construction intended to be sold. (Deft. SSUMF 3-7.) Based on this evidence, defendant meets his initial burden to demonstrate there are no triable issues of fact, shifting the burden to plaintiff to establish a triable issue.

In opposition, plaintiff presents no evidence to raise a triable issue of fact that the home was designed and constructed with the intent that it be sold, nor does plaintiff identify caselaw which would support the contention that the Right to Repair Act applies in the absence of such evidence.

As plaintiff fails to meet its burden to demonstrate a triable issue of fact, the motion for summary adjudication is granted as to the third and fifth causes of action.

6. S-CV-0050872 Ernst, Cody v. Denham, Michele

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Protective Order

Plaintiff, by and through his former counsel of record, moves for a protective order against defendants for an extension of time to respond to discovery demands. This motion was noticed for hearing on August 21, 2026 at 2:00 p.m. in Department 33. Due to scheduling changes at the court, this motion hearing was continued to August 25, 2026 at 8:30 a.m. in Department 32. While notice of the continued hearing was provided to defense counsel (order continuing hearing filed Jun. 29, 2026), it appears due to the court's mistake that plaintiff who is now self-represented was not served the notice of continued hearing.

The court on its own motion continues this motion for protective order to be heard on **September 8, 2026 at 8:30 a.m. in Department 32. The clerk of the court is directed to serve a copy of this order on plaintiff at his address of record, which is listed in the court's February 5, 2026 order relieving counsel.** The court intends to reach the merits of this motion at the continued hearing.

7. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008's Motion for Determination of Good Faith Settlement

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Determination of Good Faith Settlement

Defendants Richard Noah Cook and Mary Melody Cook, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Defendants Richard Noah Cook and Mary Melody Cook's motion for summary judgment, or in the alternative, summary adjudication, is dropped in light of the moving party's request to remove from calendar.

Defendants David Lane and Francesca Lane's Motion for Determination of Good Faith Settlement

Defendants David Lane and Francesca Lane, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendant City of Lincoln's Motion for Leave to Amend Answer

Defendant City of Lincoln moves for leave to file a first amended answer. Plaintiffs oppose the motion.

The court may permit a party to amend a pleading in the furtherance of justice and on such terms as may be just. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Leave to amend is generally exercised liberally provided there is no showing of prejudice to the opposing party. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless “largely within the sound discretion of the trial court” and “its exercise will not be disturbed in the absence of a showing of gross abuse.” (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.)

Here, defendant seeks leave to file a first amended answer alleging defenses of design immunity under Government Code section 830.6, natural condition immunity under Government Code section 831.2, trail immunity under Government Code section 831.4, and a statute of limitations theory under Code of Civil Procedure sections 318 and 319. (Opp’n at 1-2.) Plaintiffs oppose the motion, alleging defendant did not comply with Cal. Rules of Court, rule 3.1324 (a), (b); unwarranted delay; prejudice because the late amendment would require additional discovery, increase the burden of trial preparation, or delay of the trial.

As to Rule 3.1324 (a), (b), counsel for defendant City of Lincoln states in his declaration that, “The proposed First Amended Answer (a) adds supporting facts to affirmative defenses that were previously pled in conclusory form; (b) narrows the omnibus Government Claims Act immunity defense (eighth affirmative defense) into discrete immunities tied to specific causes of action; (c) adds two immunities not previously pled — natural-condition-of-unimproved-property immunity (Gov. Code, § 831.2) and design immunity (Gov. Code, § 830.6) — each supported by facts; (d) deletes the eighteenth affirmative defense in its entirety; and (e) revises the seventeenth affirmative defense to remove (adverse possession/prescriptive easement) as inconsistent with the City’s position that it did not authorize or intend the drainage discharge at issue and bolsters the defense to claims for punitive damages against the City of Lincoln ... The facts which gave rise to this first amended answer came to light following much written discovery and percipient witness discovery including discovery of the 2023 CWE engineering report, the deposition of engineer for the Cooks, Robert F. Eynck in June of 2026, and the deposition of the Khachadourian’s former counsel, Brigit Barnes, in July of 2026.” (Mot. Amend Answer, Enos Decl. ¶¶ 2, 4.) The court finds this representation to be sufficient.

As to plaintiffs’ arguments of unwarranted delay, the court notes defendant states the request to amend arises from depositions in June and July 2026. As to prejudice because the late amendment would require additional discovery, increase the burden of trial

preparation, or delay the trial, the court notes that the court has recently granted the motion to continue trial.

Accordingly, the motion is granted.

Defendant City of Lincoln shall file and serve the first amended answer by September 4, 2026.

8. S-CV-0055232 Cunningham, Laura v. Silverstein, Karina

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Advance Trial

Appearance of the parties is required on **August 25, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

9. S-CV-0055382 Marx, Leroy S v. Q&D Construction

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Substitute Plaintiff

Proposed plaintiff and successor in interest Ashley Duskin's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) A successor in interest is defined as "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) A person seeking to substitute into an action as a successor in interest for a deceased plaintiff must provide evidence in compliance with Code of Civil Procedure section 377.32(a).

Here, plaintiff's labor law claims are not abated by plaintiff's death and the declaration of Ashley Duskin meets the requirements of Section 377.32(a). The court finds Ashley Duskin is plaintiff Leroy S. Marx's successor in interest. Accordingly, Ashley Duskin is substituted into the case as the successor in interest for plaintiff Leroy S. Marx.

Order to Show Cause

The court on its own motion schedules this matter for an order to show cause hearing regarding settlement and/or dismissal on **October 27, 2026 at 9:00 a.m. in Department 32**. The parties are reminded that any requested dismissal of class actions must meet the requirements of California Rules of Court, rule 3.770.

10. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

The demurrer to the second amended complaint is continued to **October 6, 2026 at 8:30 a.m. in Department 32** to be heard together with another motion filed in this action. No further briefing is permitted.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion for Leave to File a Second Amended Complaint

Plaintiffs' unopposed motion for leave to file a second amended complaint is granted. (Coe Civ. Proc., § 473, subd. (a).) Plaintiffs shall file and serve their second amended complaint by September 4, 2026.

12. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon G

Cross-defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Cross-Complaint ("XC")

Cross-defendant demurs to the second cause of action of the cross-complaint for slander of title contending it fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants oppose the demurrer.

Cross-defendant's request for judicial notice is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Cross-defendant contends the XC alleges the parties entered into a Right of First Refusal (“ROFR”) on February 1, 2024 which granted him a property right in the subject property. Cross-defendant argues that therefore, recordation of the ROFR cannot be said to be without justification or with malice, a required element of a slander of title claim. While cross-defendant acknowledges the XC also alleges the ROFR was unsupported by consideration, cross-defendant asks this court to overlook those allegations because they conflict with the acknowledgment of consideration in the ROFR document itself. Cross-defendant asks the court to effectively make a determination about the validity and enforceability of the ROFR at the pleading stage. The court declines to do so at the pleading stage, as this type of argument is best suited for an evidentiary motion rather than by way of demurrer. Cross-defendant further argues that recordation of the ROFR does nothing to cast doubt of cross-complainant’s ownership of the real property because the language confirmed cross-complainant’s ownership of the real property. This argument ignores the reality that a ROFR would set a floor for asking price, which would cast doubt of cross-complainant’s ability to sell the real property. In sum, a careful review of the XC reveals it sufficiently alleges all elements for a slander of title claim.

Based on the foregoing, the demurrer is overruled. Cross-defendant shall file and serve an answer by September 4, 2026.

13. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants’ demurrer to complaint is continued to **September 15, 2026, at 8:30 a.m. in Department 32.**

14. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

The order to show cause regarding preliminary injunction is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32.** The court apologizes to the parties for any inconvenience. The temporary restraining order issued on August 5, 2026 shall continue until the court rules on the preliminary injunction.
